

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 04/29/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties, or failure to specify what specific provisions of the tentative ruling is contested, will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the Motions to file Records Under Seal, Lines 11, 12 and 13. This CMC is continued to trail the discovery motion to be heard on June 17, 2026 at 9:00 a.m. Parties are ordered to prepare an updated CMC statement.

2. 9:00 AM CASE NUMBER: C25-02047

CASE NAME: PETER MOREN VS. KATHRYN ROGERS

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the Discovery Motion, Line 24. If the tentative ruling for Line 24 is not contested, then the CMC is continued to October 27, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

3. 9:00 AM CASE NUMBER: C24-00719

CASE NAME: EMILY CROSS VS. TARIM HOLDINGS, LLC

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the Motion to Strike in Line 16. If the tentative ruling for Line 16 is not contested, then the CMC is continued to July 23, 2026 at 8:30 a.m. in Department 16. The Parties are ordered to meet and confer to discuss alternative dispute resolution and are ordered to file a further case management conference statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01214

CASE NAME: GABRIELA BENSON BODDEN VS. VIKTORIYA VOLZHENINA

HEARING IN RE: MOTION TO DISMISS

FILED BY:

TENTATIVE RULING:

Defendant Viktoriya Volzhenina's Motion to Dismiss the Action Pursuant to Code of Civil Procedure §§ 583.210 and 583.250 is off calendar.

On January 2, 2026, Plaintiffs filed a notice of appeal from the court's December 19, 2025 order, which granted Defendant's motion to set aside the default and quash service of the summons and first amended complaint. The appeal is pending in Court of Appeal Case No. A175307, First Appellate District, Division 2.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (CCP § 916(a).)

"The purpose of the rule depriving the trial court of jurisdiction during the pending appeal is to protect the appellate court's jurisdiction by preserving the status quo until the appeal is decided. The